



POLICE DEPARTMENT

June 30, 2023

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|-------------------------------------------------|---|------------|
| In the Matter of the Charges and Specifications | : | Case No.   |
| - against -                                     | : | 2022-26413 |
| Sergeant Johnny Mitchell                        | : |            |
| Tax Registry No. 945762                         | : |            |
| 23 Precinct                                     | : |            |

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At: Police Headquarters  
One Police Plaza  
New York, NY 10038

Before: Honorable Vanessa Facio-Lince  
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Stephanie McCarthy, Esq.  
Department Advocate's Office  
One Police Plaza, Room 402  
New York, NY 10038

For the Respondent: Matthew Schieffer, Esq.  
The Quinn Law Firm  
399 Knollwood Rd. Suite 220  
White Plains, NY 10603

To:

HONORABLE KEECHANT L. SEWELL  
POLICE COMMISSIONER  
ONE POLICE PLAZA  
NEW YORK, NY 10038

## CHARGES AND SPECIFICATIONS

1. Said Sergeant Johnny Mitchell, while assigned to the 32 Precinct, on or about and between December 1, 2021, and December 31, 2021, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: Said Sergeant Mitchell made improper physical, contact with a subordinate Member of the Service.

A.G 304-06, Page 1, Para. 1

PROHIBITED CONDUCT

2. Said Sergeant Johnny Mitchell, while assigned to the 32 Precinct, on or about and between, December 14, 2021, and December 18, 2021, engaged in conduct prejudicial to the good order efficiency, or discipline of the Department, to wit: Said Sergeant Mitchell made improper physical, contact with a subordinate Member of the Service on two (2) occasions.

A.G 304-06, Page 1, Para. 1

PROHIBITED CONDUCT

3. Said Sergeant Johnny Mitchell, while assigned to the 32 Precinct, on or about December 21, 2021, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: Said Sergeant Mitchell made improper physical contact with a subordinate Member of the Service

A.G 304-06, Page 1, Para. 1

PROHIBITED CONDUCT

## REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on May 16, 2023.

Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The Department called [REDACTED] Officer A [REDACTED] (formerly Officer [REDACTED]) and Police Officer Jimmy Gutierrez as witnesses. Respondent called Detective Kendo Kinsey and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty of Specifications 1 and 2 and Guilty of Specification 3, and recommend the forfeiture of three (3) vacation days and Equal Employment Opportunity Division remedial training.

## ANALYSIS

This case involves allegations that on several occasions during the month of December 2021, Respondent engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, by having physical contact with [redacted] Officer B [redacted] and [redacted] Officer A [redacted]. At the time of the alleged incidents, both officers were assigned to the 32 Precinct Neighborhood Coordination Officer (NCO) unit. Respondent was the Sergeant assigned to supervise this unit. While [redacted] Officer A [redacted] appeared to testify at the trial, [redacted] Officer B [redacted] did not, and the Department Advocate instead offered into evidence her hearsay statements. The allegations involving each of the officers will be analyzed separately below.

### *Specifications 2 and 3: Inappropriate Physical Conduct with [redacted] Officer A [redacted]*

[redacted] Officer A [redacted] testified that she has worked at the 32 Precinct for approximately four years. She first met Respondent in the summer of 2020 when she was assigned to the Field Training Officer (hereinafter "FTO") program. On or about September 23, 2020, she recounted an incident where she was assigned to be Respondent's driver and they responded to a shots fired incident. When she and Respondent arrived to the location, he introduced her to his former male colleagues from another precinct. She testified that the manner in which he introduced her to these male colleagues made her feel as though "he was showing me off...that made me feel bad. It made me feel uncomfortable." (Tr. 27) She did not inform Respondent that the introduction made her feel uncomfortable and instead tried to avoid interacting with him. (Tr. 28)

In September 2021, [redacted] Officer A [redacted] began to work more frequently with Respondent because they were scheduled for similar tours. At first, she characterized her relationship with him as "regular." When asked if they ever discussed anything regarding her work performance, she recalled him telling her that "he was going to get her a collar." (Tr. 28) She further

elaborated that Respondent offered to get her an arrest involving “an EDP, somebody that smells, somebody with no legs.” (Tr. 29) [Officer A]’s interpretation of that was that her supervisor was suggesting that he is going to assign her arrests that are commonly perceived as “bad” by most officers and it made her feel threatened. Although she admitted that at this point in her career she had a low number of arrests, she felt that Respondent’s suggestion was intended to make her feel “uncomfortable, bothered and annoyed.” (Tr. 29)

In November 2021, [Officer A] became an NCO (Neighborhood Coordination Officer) and although she was looking forward to the opportunity, she was concerned when she found out that Respondent was the NCO Sergeant. [Officer A] was assigned to NCO sector Boy and her regular partner was Officer Jimmy Gutierrez. She described sector Boy as the “slowest” compared to other sectors in the precinct. [Officer A] testified that Respondent joined her and her partner on patrol approximately eight (8) times between December 2021 and January 2022. (Tr. 35) She felt as though Respondent was only focusing on her sector and that previously a supervisor had never shadowed her on patrol.

[Officer A] recalled a particularly “unusual” incident on or about December 14, 2021, during which Respondent sat in the back of the RMP, while her partner drove and she sat in the front passenger seat. She testified that Respondent leaned over toward her, grabbed her left arm between her shoulder and her elbow, and said “You ready? I’m going to get you a collar.” (Tr. 37-38) She testified that Respondent touched her arm two times while in the RMP. [Officer A] testified that Respondent’s physical contacts made her feel “really uncomfortable.” She did not express her discomfort to Respondent but she did complain to her partner who was present in the car when this transpired. On cross-examination, she admitted that at the time Respondent made these comments, she had a low number of arrests because she was “fairly



new.” (Tr. 67) Department’s Exhibit 9 – [redacted] Officer A [redacted]’s Arrest System History – corroborates that she did have a low number of arrests from 2020-2022.

[redacted] Officer A [redacted] testified that later that same month, on or about December 21, 2021, she was sitting at her desk in the NCO office and Respondent approached her, squeezed the area between her neck and shoulder and stated “Hello [redacted] [redacted];” this allegation forms the basis for Specification 3. (Tr. 41) She further stated that this gesture made her feel uncomfortable because she never gave him permission to touch her. Furthermore, she observed that he did not make physical contact with anyone else in the office when he said hello to them. At this point, she testified that she wanted to say something to Respondent but did not do so because she “knew that it could bring even more problems.” (Tr. 42) [redacted] Officer A [redacted] elaborated that she was concerned if she said something to Respondent he could assign her undesirable arrests or make unwanted changes to her schedule. [redacted] Officer A [redacted] did, however, mention this interaction to her partner and two other officers. (Tr. 43)

[redacted] Officer A [redacted] also testified that Respondent made various comments about other topics, both work and non-work related, which made her feel uncomfortable. On one occasion, [redacted] Officer A [redacted] recalled sitting in the passenger seat of the RMP with Respondent and they were talking about a store they were both familiar with in the Bronx. Respondent said to [redacted] Officer A [redacted] [redacted] “The lady from the store used to make fun of me because I went there to buy condoms and beers.” (Tr. 44) According to her testimony, this comment made [redacted] Officer A [redacted] feel awkward and uncomfortable because “they were not friends.” (Tr. 44)

On another occasion she participated in a discussion about officers making allegations against supervisors. Respondent’s alleged contribution to that discussion was: “An allegation like that against a supervisor is something serious.” (Tr. 45) Although very little context was

provided regarding this comment, [Officer A] did testify that she felt that this comment was directed at her.

[Officer A] testified about a separate occasion when she was in the RMP with Respondent and Officer Gutierrez and she showed them a video that went viral of a sergeant grabbing a female officer by her neck. When she showed them the video, she recalls Respondent saying: "That's what some of you guys need." (Tr. 52) She was "surprised, "shocked," and "uncomfortable" when she heard Respondent's comment and told him directly that she "could not believe" he would say that. When Respondent laughed it off, she replied: "It's not funny." (Tr. 52) [Officer A] testified that there was an awkward silence in the car after that verbal exchange. After the above-mentioned incident in the RMP, they went to Krispy Kreme at Respondent's request before going back to the command. [Officer A] recalled that Respondent saw the doughnuts that he purchased were untouched and he asked her if she was going to eat a doughnut. When she replied, "No. I'm on a diet." he responded, "Am I going to have to order you to eat a doughnut?" (Tr. 54) [Officer A] was so upset about Respondent's comment that she contacted a delegate to see if he could, in fact, order her to eat a doughnut. (Tr. 55)

Finally, [Officer A]'s testimony concluded with her recitation of an incident that occurred on or about January 15, 2022. Forty minutes before the end of her tour, Respondent brought in an individual that was on a "wanted flyer" to process his arrest. She recalls that her partner, Officer Gutierrez, had worked approximately 20 hours straight, so she volunteered to take the arrest. (Tr. 56) She went on to say that there was a conversation among the NCO officers about this arrest in the muster room of the precinct. After the meeting, Respondent told her in sum and substance: "If you are not happy here, you could leave." (Tr. 49) [Officer A]

testified that she processed the arrest, but felt she did not have enough information to do so. Approximately five days after this incident, [Officer A] made a formal complaint to the EEO office about Respondent and he was promptly removed from the unit while an investigation was conducted. (Tr. 64-65)

Officer Jimmy Gutierres testified that he became [Officer A]'s steady partner in November 2021. They were both assigned to Sector Boy. He described Respondent as a "micromanager" because he "constantly wanted to know what they were up to" and would go out on patrol with them more often than supervisors had in the past. (Tr. 91-92) He recalled that at some point in December 2021, Respondent went out on patrol with Sector Boy and, while responding to a domestic violence call, he observed Respondent touch [Officer A]'s elbow and ask her how she was doing. Officer Gutierres offered limited insight or details about this interaction.

Officer Gutierres then recalled that in December 2021, [Officer A] told him that Respondent touched her arm while they were in the RMP. Officer Gutierres was driving on the date of this incident and he personally observed Respondent touch [Officer A]'s elbow. He testified that he "didn't think it was a big deal at the time" but that his partner said it made her uncomfortable. (Tr. 95) Officer Gutierres also testified that his partner complained to him about a time when she was alone in the NCO office with Respondent and he touched her by the shoulder or neck area. While Officer Gutierres did not personally observe this incident, he recalled that his partner told him about it because it made her feel uncomfortable.

During direct examination, Officer Gutierres was asked if there were any other times he could recall Respondent making an off-putting comment. The only time he could remember was when he was doing an operation at Duane Reade with Respondent and [Officer A] While



in the RMP, [Officer A] showed them a video on her phone of a supervisor in a different police department who pushed/grabbed a female subordinate by the neck. After viewing the video, Respondent stated in sum and substance "some of you guys need that." (Tr. 97) Officer Gutierrez recalled that [Officer A] reacted to Respondent's comment by stating in sum and substance: "That wasn't funny at all." (Tr. 98) He further testified that it was "awkward" in the car after that interaction between Respondent and his partner.

Respondent testified that while he could not specifically recall the incidents alluded to above, he did, however, remember that when he took over as supervisor of the NCO program, he made it a priority to evaluate the performance of each sector because his commanding officer informed him that "enforcement activity was close to nonexistent." (Tr. 112) So, he did go out on routine patrol with every sector, including, Sector Boy. Respondent further testified that what he gleaned from going out with Sector Boy was that they were not familiar with the "wanted subjects" or with the "ongoing patterns" in their sector. (Tr. 112) He was unimpressed with Sector Boy's level of knowledge regarding their sector or their level of enthusiasm. When asked to specifically comment on [Officer A]'s job performance, Respondent described her as "lazy" and that she needed "guidance." (Tr. 113) He went on to recount that he would get a lot of pushback when he would go out with Sector Boy and that [Officer A] referred to certain arrests as "bag of shit collars" that no one wants. (Tr. 113-14)

Respondent testified about only one occasion of conflict with [Officer A] that stood out in his mind which occurred on or about January 15, 2022. He was covering patrol supervisor duties and driving around in the RMP when he observed an individual who was wanted for a stabbing that occurred within Sector Boy. He and the officer whom he was working with placed this individual under arrest and transported him back to the precinct. Once at the precinct, he



informed Officers Gonzalez and Gutierres that the individual apprehended committed the crime within their sector and he wanted one of them to handle the arrest. He observed that there was some back and forth between them about who would take the collar since it was close to the end of tour. (Tr. 116) Officer Gutierres had done a "four by" and worked overtime that day, so Respondent made an executive decision to assign the arrest to [Officer A] Officer Kendo Kinsey approached Respondent and explained to him that [Officer A] was upset about being assigned this arrest and that was "going to get him (Respondent) in trouble." (Tr. 118) Although he did not personally hear what [Officer A] said to her colleagues, he could see that she was upset about this assignment and immediately brought it to the attention of the Special Operations Lieutenant (hereinafter "SOL"), Lieutenant Bletcher. She did not say anything specifically to the SOL or Respondent when they discussed the arrest, but throughout the night she called Respondent to complain that she did not have enough information to process the arrest and that she "does not get paid enough to do this." (Tr. 121-22)

During cross-examination, Respondent reiterated that he did not recall the events that [Officer A] testified about and denied that he made inappropriate physical contact with her. He testified that he did, however, recall the incident when they responded to shots fired, but denied that he introduced [Officer A] in a disparaging tone or manner and that he did not intend for it to make her feel uncomfortable. He further testified that he is particularly mindful and conscious about his interactions with other officers because his wife works in the same precinct as he does. He is cognizant to keep it "purely professional," even with his wife, when he is at work. (Tr. 141-42)

He noted that on two separate occasions prior to December 2021, he issued Officer A negative CRAFT entries.<sup>1</sup> One entry was for failure to report to roll call and the other was for improper classification of a crime on a complaint. (Tr. 131-134) He added that he also issued Officer A a “positive CRAFT” entry in January 2022 for an arrest that he assigned to her. (Tr. 150) Respondent explained that he routinely issues CRAFT entries to document deficiencies in performance for other subordinates and that this practice was not intended to target Officer A. Respondent was asked if after his interactions with Officer A he formed an opinion about her. He responded that she was a new officer with some “training deficiencies that needed to be addressed.” (Tr. 136)

Finally, Detective Kendo Kinsey was called by Respondent to testify about his observations concerning the January 15, 2022 incident. Detective Kinsey testified that he overheard Officer A complaining in the muster room about being assigned an arrest and she was “visibly distraught.” (Tr. 154) He further testified that he heard Officer A say, “I’m going to get him in trouble” referring to Respondent. (Tr. 154) He informed Respondent about what he heard and that Officer A was very upset.

Specifications 2 and 3 allege that Respondent made improper physical contact with Officer A a subordinate, on several occasions causing her to feel uncomfortable. With respect to these allegations, the Department Advocate in her summation argued that “Respondent made improper physical contact with (two) subordinates and that although the contact was not overtly sexual in nature so as to sustain a sexual harassment charge, it nevertheless stands that no

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<sup>1</sup> “CRAFT” is an acronym used for the Cop’s Rapid Assessment Feedback Tool. The Department launched the CRAFT application to provide a mechanism to document performance that has traditionally not been captured by standard Department forms and reports. This application not only allows all uniformed members of the service the opportunity to self-report laudable actions, it also allows supervisors to document both positive and negative interactions with uniformed members of the service. These self-reports and supervisor’s feedback are available in the performance evaluation system, which assists supervisors in making the appropriate decisions when evaluating members.

one, particularly a supervisor, should be putting their hands on any other member of service.”

(Tr. 169) As such, at issue here is whether the physical contact alleged in specifications 2 and 3 consisted of “more than what a reasonable person would consider petty slights and trivial inconveniences.” *See Williams v. New York City Housing Auth.*, 61 A.D.3d 62 (1st Dep. 2009).

It was evident from [Officer A]’s testimony, as well as the testimony of Officer Gutierrez and the interview of [Officer B] that many officers in the NCO unit regarded Respondent as a “micromanager” and did not appreciate his style of supervision. [Officer A] [redacted] in particular, was not happy about Respondent’s close monitoring of Sector Boy. Although [Officer A] attempted to convince this court that Respondent’s continuous close supervision of her sector was an attempt to make her feel uncomfortable, I find that the evidence demonstrates that there was a legitimate supervisory objective for Respondent’s actions including the correction of documented deficiencies in her patrol activities.

In addition, while [Officer A] may not have welcomed Respondent’s physical contact with her arm as alleged in Specification 2, I find that a reasonable person would consider this interaction to be inoffensive. Even her partner testified that he “did not think anything of it” when Respondent touched [Officer A]’s arm inside the RMP and stated in sum and substance: “Are you ready? I’m going to get you a collar.” [Officer A] might have felt internal ambivalence to Respondent’s physical contacts on December 14, 2021, but applying an objective, reasonable standard, this Tribunal does not find that his action on that occasion constituted misconduct. Accordingly, I find Respondent not guilty of the misconduct charged in Specification 2.

Conversely, however, I find Respondent’s interaction with [Officer A] on or about December 21, 2021 concerning. It is not always easy to determine when physical contact crosses



a line. Even a seemingly harmless gesture can turn inappropriate, especially if the contact comes from a person in a position of power. In a professional setting, there is no reason or justification for Respondent to unilaterally decide to squeeze [Officer A]'s shoulder or neck area while greeting her. Even if it was meant to be friendly, this type of physical contact in the workplace is not appropriate, especially between supervisors and subordinates. Supervisors are responsible for setting a standard of professionalism and continually reinforcing best practices for appropriate workplace interactions. Respondent owes a duty to his subordinates, including [Officer A] to foster a work environment free from harassment and unwanted physical contact. When a supervisor touches a subordinate in the manner that Respondent touched [Officer A] on December 21, 2021, it has a demoralizing effect on the command. There is also significant evidence in this case that Respondent's pre-existing work relationship with [Officer A] was not collegial. Given the totality of circumstances, I find that touching [Officer A] in this manner (Specification 3) was inappropriate and cannot be tolerated in a Department that prides itself on courtesy, professionalism and respect. Accordingly, I find Respondent guilty of Specification 3.

*Specification 1: Inappropriate Physical Contact with [Officer B]*

[Officer B] did not testify at trial. She retired from the Department on September 30, 2022 (Personnel Order No. 238). [Officer B] was interviewed by an investigator from the Equal Employment Opportunity (EEO) division on or about February 17, 2022. The audio recording and transcript of her Department interview was admitted into evidence as Department Advocate's Ex. 3A-C.

This tribunal has held that while hearsay is admissible in administrative proceedings, and may be the sole basis for a finding of fact, it must be carefully evaluated before it is relied upon.

The more central the hearsay is to the case, the more critically it should be assessed. *See Disciplinary Case Nos. 2018-19483 & 2019-20376* (Apr. 29, 2021), citing *Calhoun v. Bailar*, 626 F.2d 145, 149-50 (9th Cir 1980). A tribunal must review a number of factors to determine the reliability and probative value of hearsay, including witness availability, the independence or bias of the declarant and the degree to which the statement is corroborated. *See Disciplinary Case No. 2018-19274* (Aug. 19, 2019), citing *Police Dept. v. Ayala*, OATH Index No. 401/88 (Aug. 11, 1989). *aff d sub nom., Ayala v. Ward*, 170 A.D.2d 235 (1st Dept. 1991); *see also Police Department v. Lowe*, OATH Index No. 892/91 (June 3, 1991), citing *Transit Authority v. Maloney*, OATH Index No. 500/91 (Apr. 19, 1991).

In her interview, [Officer B] stated that she worked at the 32 Precinct for about eight years and recalled working with Respondent for a limited period of time while in the NCO Unit. When asked to describe Respondent, she described him as “all business” (Dept. Ex. 3C, p.5) and “stern.” (Dept. Ex. 3C, p. 11) She went on to say that she never personally observed him trying to make any sexual advancements toward [Officer A], herself or any other female officer.

[Officer B] did, however, state that [Officer A] complained to her about him trying to “flirt” with her on multiple occasions and that this caused her to feel uncomfortable.

[Officer B] was asked if Respondent had ever done anything to her and she responded: “He placed his hand on my arm which made my hairs on the back of my neck stand up a little, but that’s about it...He said Hey – Hi [first name] how are you? And grabbed my forearm.” (Dept., Ex. 3C, p 8) She described this interaction as “awkward” but not “offensive.” She stated that she never told Respondent that it made her feel uncomfortable, nor did this type of interaction repeat itself. Furthermore, because she did not find it “offensive” she did not want to be included as a complainant in this case.

Respondent testified that he remembers working with [redacted] Officer B for a brief period of time. He had no independent recollection of the alleged incident, but denied any physical contact with her. (Tr. 114, 141) He, therefore, could not provide any evidence to corroborate or contradict [redacted] Officer B's version of events.

After carefully reviewing and evaluating [redacted] Officer B's statements, this appears to have been an isolated incident. She did not characterize it as offensive or inappropriate physical conduct, but rather stated that she felt it was "awkward" at the time that it happened. Based upon the limited contextual evidence provided, I find that there is insufficient evidence to find that Respondent touching [redacted] Officer B's forearm while greeting her rose to the level of sanctionable misconduct. Accordingly, I find Respondent Not Guilty of Specification 1.

### PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on January 17, 2008, has been found Not Guilty of Specifications 1 and 2 and Guilty of Specification 3. The Department has requested a penalty of ten (10) vacation days and Equal Employment Opportunity Division remedial training. The penalty for this type of misconduct pursuant to the Disciplinary Guidelines ranges from training to termination. Indeed, there is limited precedent for a set of circumstances like this one involving inappropriate touching that is not part of a larger sexual



harassment issue. With that in mind, and taking into consideration that the Department did not meet its burden with regard to Specifications 1 and 2, I find that a significantly lower penalty is warranted. I, therefore, recommend that Respondent forfeit three (3) vacation days and receive Equal Employment Opportunity Division remedial training. This penalty will serve as a reminder that supervisors are responsible for maintaining a positive workplace and exhibiting conduct that promotes good order and efficiency of the Department.

Respectfully submitted,



Vanessa Facio-Lince  
Assistant Deputy Commissioner Trials

**APPROVED**

NOV 10 2023  
  
EDWARD A. CABAN  
POLICE COMMISSIONER



## POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD  
DETECTIVE JOHNNY MITCHELL  
TAX REGISTRY NO. 945762  
DISCIPLINARY CASE NO. 2022-26413

Respondent was appointed to the Department on January 17, 2008. On his three most recent annual performance evaluations, he received a 4.5 rating of “Extremely Competent/Highly Competent” for 2022, a 4.0 rating of “Highly Competent” for 2021, and was rated “Exceptional” for 2019. He has been awarded one medal for Meritorious Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Vanessa Facio-Lince  
Assistant Deputy Commissioner Trials